

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

DOCKET NO. 25-02

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC AGREEMENT No.011982); EVERGREEN MARINE CORPORATION (TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.; EVERGREEN MARINE (SINGAPORE) PTE. LTD.; AND YANG MING MARINE TRANSPORT CORPORATION, *Respondents*.

Served: March 26, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER GRANTING PROTECTIVE ORDER AS MODIFIED

On March 26, 2026, Complainant Nielsen & Bainbridge, LLC (“NBG”) and Respondents Evergreen Line Joint Service Agreement (FMC Agreement No. 011982); Evergreen Marine Corporation (Taiwan) Ltd.; Evergreen Marine (UK) Limited, Italia Maritima SpA; Evergreen Marine (Hong Kong) Ltd.; Evergreen Marine (SINGAPORE) Pte. Ltd. (collectively, “Evergreen”), and Yang Marine Transport Corporation (“Yang Ming”), filed a joint motion for a protective order (“MPO”), and attached a copy of the proposed protective order (“PPO”). The parties state that “a protective order is necessary and required to enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive.” MPO at 2. I agree, but the proposed protective order must be modified to comply with the Commission’s rules and the initial order.

The initial order issued in this proceeding states that “[t]he parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission.” Initial Order at 5. The proposed protective order includes provisions regarding submission of confidential information for use in this proceeding that are not consistent with the Initial Order. The parties are reminded that the Initial Order and Commission Rule 141 set forth the use of confidential information in the proceeding:

Use in the proceeding – If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must

identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.

Id. The parties are urged to review the Initial Order regarding the submission of confidential information. The portions of the protective order addressing the submission of information to the presiding officer or the Commission are modified to comply with the Commission's rules as addressed in the Initial Order, and here.

In addition, some provisions of the PPO address time limits for filing responses to motions that are inconsistent with the Commission's rules. Rules regarding the time limits to file motions and responses to motions are found at 46 C.F.R. §§ 502.67 – 502.71 and cannot be altered by the parties' agreement but may be extended or reduced by order if good cause exists at time of the request. *Id.* at 4.

The parties state that the protective order will "remain in full force and effect after the conclusion of this proceeding, including any appellate proceedings." PPO at 11. The presiding officer may not retain jurisdiction over the proceeding after the initial decision is issued. Accordingly, any provisions in the PPO which could be read as requiring submission of motions to the presiding officer or administrative law judge after the issuance of the initial decision are modified to add: "prior to the issuance of the initial decision." Similarly, provision 14 of the PPO is modified to reflect that the parties acknowledge that the presiding officer does not retain jurisdiction after the issuance of the initial decision, and disagreements regarding confidential material will be submitted to the appropriate body that does.

Accordingly, the joint motion for a protective order is **GRANTED**, and the Protective Order is **MODIFIED** by the above, consistent with the Commission's rules and the Initial Order.



Linda S. Harris Crovella
Administrative Law Judge